

Marshall Islands 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in the Marshall Islands during the year.

Significant human rights issues included credible reports of trafficking in persons, including sex trafficking and forced labor.

The government had mechanisms in place to identify and punish officials who committed human rights abuses.

Section 1. Life

a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The constitution provided for freedom of expression, including for members of the press and other media, and the government generally respected this right. An independent media, an effective judiciary, and a functioning democratic political system combined to provide for freedom of expression, including for media members.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for freedom of association, and the government interpreted this right as allowing persons to form and join independent labor unions. The law did not address collective bargaining or the right to strike. The law did not specifically prohibit antiunion discrimination, nor did it require the reinstatement of workers fired for union activity.

In view of the absence of unions or worker organizations, there were no reports of government enforcement of laws respecting their establishment or operation. Legal penalties were commensurate with those for other laws involving denials of civil rights, such as discrimination, and penalties were rarely applied against violators.

There were two nongovernmental organizations promoting the rights of workers.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

The law established a minimum wage which was not above the poverty line. Foreign employees and local trainees of private employers who invested in or established a business in the country were exempt from minimum-wage requirements, provided the employer received government authorization. The cabinet could also exempt qualified export-oriented industries from minimum wage laws. Most foreign workers, who constituted approximately 30 percent of the workforce (excluding agroforestry), and most of the professional and technical classes in the country earned considerably more than the minimum wage. The law provided for a standard 40-hour workweek, and required premium pay for overtime, but placed no restrictions on the amount of overtime work.

Occupational Safety and Health

Occupational health and safety (OSH) standards were generally appropriate

for the main industries of the country. OSH experts did not actively identify unsafe conditions. No legislation provided protection for workers who filed official complaints regarding conditions that endangered their health or safety. The law did not provide for workers to remove themselves from situations that endangered health or safety without jeopardy to their employment.

Wage, Hour, and OSH Enforcement

The government did not effectively enforce minimum wage, overtime, and OSH laws. Penalties for violations were not commensurate with those for similar crimes and penalties were rarely applied against violators.

The Department of Labor conducted inspections related to wages, hours, and occupational safety and health. Inspectors had the right to conduct unannounced inspections and issue sanctions. The number of inspectors was insufficient to enforce compliance.

Informal sector workers, an estimated 25 percent of the workforce, were not covered by wage, hour, OSH, and other labor laws and inspections.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The constitution prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of an arrest or detention in court, and the government generally observed these requirements.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/international-religious-freedom-reports/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution prohibited torture and inhuman or degrading treatment. Majuro and Ebeye jail authorities routinely held drunk prisoners naked. Government officials stated they adopted this practice so prisoners could not use their clothing to attempt suicide.

In June an outer island local police chief was convicted of attempted murder and aggravated assault after shooting a man in the face in October 2022.

b. Protection of Children

Child Labor

There was no significant presence of the worst forms of child labor. The law prohibited exploitation of children younger than age 18, including in the worst forms of child labor, child begging, and child domestic work. The government effectively enforced the law. There was no law or regulation setting a minimum age, hours of work, or occupational health restrictions for employment of children. Government inspections found no evidence of child labor, and nongovernment sources confirmed that children typically did not work in the wage economy. Penalties for child labor were commensurate with those for other analogous crimes such as kidnapping and were rarely applied against violators. It was, however, common for children in the subsistence economies of more remote atolls to support copra (dried coconut kernels) production, which could take children from school and reduce educational outcomes.

Child Marriage

The legal minimum age for marriage was 18. Marriage before age 18 required parental consent. According to the UN Population Fund database,

26 percent of women ages 20-24 were married before age 18. There were no known government measures to prevent or mitigate early marriage.

c. Protection to Refugees

The country had no history of receiving refugees or asylum seekers.

Provision of First Asylum

The law did not provide for granting asylum or refugee status, and the government had no system for providing protection to refugees.

d. Acts of Antisemitism and Antisemitic Incitement

There were few Jewish residents in the country, and there were no reports of antisemitic incidents.